

SUPREME COURT FOR THE STATE OF NEW YORK
KINGS COUNTY

-----X
ALONSO BREWSTER,

Plaintiff,

-against-

THE CITY OF NEW YORK; MAYOR OF THE CITY OF
NEW YORK ERIC ADAMS; NYPD POLICE
COMMISSIONER KEECHANT SEWELL;
DEPARTMENT OF CORRECTION COMMISSIONER
LOUIS MOLINA; NYPD DETECTIVE FELICIA SIMON
(BADGE 6895); NYPD POLICE OFFICER CHRISTOPHE
DEMARCHE; and NYPD MEMBERS JOHN or JANE
DOE #1-5,

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action
and to serve a copy of your Answer on the plaintiff's attorney within 20 days after the service
of this Summons, or within 30 days after service of this Summons is complete if this
Summons is not personally delivered to you within the State of New York.

In case of your failure to Answer this Summons, a judgment by default will be
taken against you for the relief demanded in the complaint, together with the interest, costs
and/or disbursements of this action.

Dated: Brooklyn, New York
March 6, 2024

KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff

By: 
Maryanne K. Kaishian, Esq.

Index No.:

SUMMONS

Plaintiff designates
KINGS COUNTY
as the Venue and
place of trial.

The basis of Venue is
that a substantial part
of the conduct giving
rise to this Complaint
occurred in Kings
County.

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

MAYOR OF THE CITY OF NEW YORK ERIC ADAMS
100 Church Street
New York, NY 10007

NYPD POLICE COMMISSIONER KEECHANT SEWELL
(Former)
New York City Police Department
1 Police Plaza
New York, New York 10038

DOC COMMISSIONER LOUIS MOLINA
(Former)
New York City Department of Correction
75-20 Astoria Blvd.
East Elmhurst, New York

NYPD DETECTIVE FELICIA SIMON (BADGE 6895)
NYPD 67th Precinct

NYPD POLICE OFFICER CRISTOPHE DEMARCHE
NYPD 67th Precinct

-and-

NYPD MEMBERS JOHN or JANE DOE #1-5.

SUPREME COURT FOR THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Case No.:
ALONSO BREWSTER,

Plaintiff,

VERIFIED
COMPLAINT

-against-

THE CITY OF NEW YORK; MAYOR OF THE CITY OF NEW YORK ERIC ADAMS; NYPD POLICE COMMISSIONER KEECHANT SEWELL; DEPARTMENT OF CORRECTION COMMISSIONER LOUIS MOLINA; and NYPD MEMBERS JOHN or JANE DOE #1-5;

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Defendants.

-----X

Plaintiff, ALONSO BREWSTER, by his attorneys, KAISHIAN & MORTAZAVI LLC, by MARYANNE K. KAISHIAN, ESQ., an attorney duly licensed to practice before the United States District Court for the Eastern District of New York, hereby complains of Defendants as follows:

PRELIMINARY STATEMENT

1. On March 29, 2022, Plaintiff, Alonso Brewster, a resident of Queens County, City and State of New York, was falsely charged with possession of a weapon, assault, and various other charges. Defendant NYPD Members were aware that Mr. Brewster was not the perpetrator of the alleged crimes through evidence available to them from the outset of the investigation, including several contemporaneous 911 calls from neighbors identifying the complaining witness, and not Mr. Brewster, as the perpetrator of various allegations levied against Mr. Brewster. Nevertheless, Defendants arrested and falsely charged Mr. Brewster. As a result, Mr. Brewster was wrongfully incarcerated at Rikers Island for approximately eight months. The case against Mr. Brewster terminated in his favor when it was dismissed on December 7, 2022.

2. Mr. Brewster now brings the instant case before this Court for, *inter alia*, malicious prosecution, interference with his right to a fair trial, deficient conditions of confinement, and fabrication of evidence.

PARTIES

3. At the time of the events giving rise to this Complaint, Plaintiff, ALONSO BREWSTER, was a resident of Kings County, City and State of New York.

4. Plaintiff is currently a resident of Queens County in the City and State of New York.

5. At all relevant times mentioned herein, DEFENDANT CITY OF NEW YORK (“Defendant City” or “New York City”), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

6. Defendant New York City Mayor ERIC ADAMS was at all times relevant to this Complaint the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agent, including the New York City Police Commissioner. He is sued individually and in his official capacity.

7. Defendant NYPD Commissioner KEECHANT SEWELL was at all times relevant to this Complaint the Police Commissioner of the NYPD. As Police Commissioner, Defendant Sewell, personally and/or through her authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers’ performance of their duties, and constituted a City policymaker for whom the City is liable. She is sued individually and in her official capacity.

8. Defendant Former DOC Commissioner LOUIS MOLINA (“Defendant Molina”) was at all times relevant to this Complaint the Commissioner for the New York City Department of Correction. As DOC Commissioner, Defendant Molina, personally and/or through his authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to DOC staff members’ performance of their duties. As Commissioner, Defendant Molina is responsible for staffing determinations, including filling vacant positions and enforcing policies against staff absenteeism. Defendant Molina constituted a City policymaker and an agent and/or employee for whom the City is liable. He sued individually and in his official capacity.

9. Defendant NYPD Detective Felicia Simon and Defendant PO Chistophe Demarche were at all times employed by the City of New York as members of the NYPD.

10. The true names and identities of DEFENDANT NYPD MEMBERS JOHN OR JANE DOE #1 – 5 are currently unknown to Plaintiff, and these Defendants are fictitiously assigned the name(s) “Defendant NYPD Does # 1 – 5” for the purposes of the instant Complaint. At all times hereinafter mentioned, Defendant NYPD Does # 1 – 5 were employed by the City of New York as members of the NYPD.

11. At all times hereinafter mentioned, all individual Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

12. Each and every act and omission by the individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

13. The individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

14. All Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

15. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

16. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

17. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

18. Each individual Defendant is sued in her or his individual and official capacities.

JURISDICTION and CONDITIONS PRECEDENT

19. This matter is properly before this Court as a majority of the incidents occurring herein took place in Kings County, City and State of New York.

20. Plaintiff timely served Notices of Claim on the municipal Defendant within ninety (90) days of the accrual of the relevant claims complained of herein and complied with all conditions precedent to commencing an action under New York State law.

21. The damages amount sought by Plaintiff exceeds the jurisdiction of all lower courts.

22. Mr. Brewster was examined by the Defendant City of New York pursuant to GML §50-H.

23. At least thirty days have elapsed since service of Plaintiff's Notices of Claim and adjustment and payment thereof has been neglected or refused.

24. This action was initiated within one year and ninety days of the accrual of all Plaintiff's claims pursuant to New York State law, and within three years of the accrual of all claims brought pursuant to New York City Admin. Code Title 8, Ch. 8 § 8-802, et seq., 42 U.S.C. § 1983, and Federal law.

STATEMENT OF FACTS

25. On or about March 28, 2022, a series of 911 calls were made.

26. In one, a woman who identified herself as calling from 140 E. 91st St. in Kings County, City and State of New York, called 911 and alleged that her ex-boyfriend, who she identified as a man named Troy Alexander, was threatening her.

27. The woman identified Troy Alexander as both her former partner and her neighbor.

28. A second female caller, identifying herself as a neighbor of Troy Alexander, called 911 from a residence located at or near 155 E. 91st St. in Kings County stating that she heard gunshots coming from 151 E. 91st St., which she identified as Troy Alexander's home.

29. This individual then called 911 again, stating that Troy Alexander ran through her home holding a gun.

30. A third individual, a female caller, called 911 from a residence located near 140 E. 91st St. stating that the woman at 140 E. 91st St. was loudly threatening to burn down her own home.

31. The third caller also requested police response.

32. The third caller further stated that the woman at 140 E. 91st St. had barricaded herself in her home and was attempting and/or threatening to use accelerants to set fire to the building.

33. The third caller further stated that the woman had stacked furniture in front of her home, was loudly threatening to burn down her own home, and threatened the caller when she approached the home to check on the welfare of the woman and that of the woman's pet dog, who the caller alleged was being neglected.

34. The third caller stated that the woman had been acting erratically for approximately three days.

35. The woman at 140 E. 91st St. called 911 again, stating that she believed her ex-boyfriend's associates were attempting to enter her home.

36. The woman at 140 E 91st St. called 911 again, stating that a girl attempted to enter her home to kill her, and stating that her ex-boyfriend's friend had attempted to light her home on fire.

37. On March 29, 2022, Defendants arrested Mr. Alonso Brewster at Maimonides Hospital upon learning he had suffered stab wounds sustained near 166 E 91st St.

38. Defendants identified Mr. Brewster to the woman at 140 E. 91st St., who then accused Mr. Brewster of threatening to light her home on fire, firing a gun in her home, and disposing of the gun. No ballistics were recovered.

39. The woman further accused Mr. Brewster of assaulting her and causing injury, though she refused medical attention.

40. Defendants knew, based on multiple contemporaneous 911 calls, that this was not a plausible accusation against Mr. Brewster.

41. Defendants further knew, based on the allegations, that Mr. Brewster was the victim of a serious violent crime.

42. Defendants were aware of the reported incidents occurring at 140 E. 91st St., and were further aware that no allegations had been made tying Mr. Brewster to any of the alleged criminal activities.

43. Nevertheless, while suffering from multiple stab wounds, Mr. Brewster was placed under arrest on March 29, 2022.

44. This arrest was conducted by and/or at the direction of and/or based on information provided by Defendant NYPD Detective Felicia Simon and NYPD PO Christophe Demarche.

45. These NYPD Defendants forwarded false information to the Brooklyn District Attorney's Office to induce a criminal action against Mr. Brewster.

46. Mr. Brewster was arraigned in Brooklyn Criminal Court on charges including Penal Law § 265.03, Criminal Possession of a Weapon in the Second Degree, and Penal Law § 120.05, Assault in the Second Degree.

47. Defendant NYPD Detective Simon, PO Demarche, and NYPD Members Does # 1-5 fabricated evidence by, *inter alia*: falsely representing the allegations against Mr. Brewster and omitting information regarding the implausibility of these allegations; by falsely representing the

cause for Defendants' arrest of Mr. Brewster; by providing fabricated evidence to prosecutors in the Early Case Assessment Bureau of the Kings County DA's Office; by providing false testimony to the Grand Jury, resulting in Mr. Brewster's indictment; by providing false testimony to the Court during a suppression hearing; by falsely informing prosecutors that the search of Mr. Brewster had been lawful; by falsely denying Defendants' utilization of excessive force; by fabricating Defendants' narrative of Mr. Brewster's conduct, including in ways constitutionally tailored to suggest unlawful conduct by Plaintiff and to justify Defendants' unlawful conduct; and by otherwise knowingly presenting false evidence and information likely to influence a jury.

48. As a result of this conduct, Mr. Brewster had bail set and was committed to Defendant City's custody. Mr. Brewster was incarcerated on Rikers Island in the custody of Defendant City's agents and/or employees with the Department of Correction for approximately eight months. During this time Mr. Brewster was assaulted by another individual.

49. Mr. Brewster endured pain, suffering, and emotional anguish, was denied medical care, and was otherwise subjected to the violence and deficient conditions of Defendant City's jails until his release.

50. Mr. Brewster was released from Defendant City's custody on or about October 27, 2022.

51. Mr. Brewster was forced to return to Kings County Supreme Court on approximately two (2) more occasions during the pendency of the criminal matter against him.

52. On or about December 7, 2022, the case against Mr. Brewster terminated in his favor with the dismissal of all charges.

Damages

53. Defendants' conduct subjected Mr. Brewster to wrongful incarceration, exposure to the deficient conditions of Defendant City's jails, denial and/or delay of medical care, lost

income, and further deprived him of his property, and forced him to expend costs, including medical expenses related to his injuries, and transportation to and from his court appearances.

54. Defendants forced Mr. Brewster to experience anxiety related to leaving his home for fear of being assaulted without any justification or cause.

55. Defendants' conduct knowingly exposed Mr. Brewster to the harm of incarceration in Defendant City's custody at Rikers Island, during which time he was assaulted by another incarcerated individual, causing him additional pain, suffering, injuries, and damages.

56. Defendants have greatly interfered with Mr. Brewster's enjoyment and engagement in daily life.

57. Defendants' conduct has caused Mr. Brewster serious pain, suffering, and mental anguish in addition to pecuniary damages.

58. The full extent of Mr. Brewster's injuries and damages is not yet known.

FIRST CLAIM FOR RELIEF

Unlawful Search and Seizure

Against All Defendants Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

59. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

60. Defendants' seizure of the Plaintiff herein was done without any judicial warrant authorizing them to search or seize any Plaintiff or his property, was unreasonable, and was done without privilege or lawful justification.

61. Plaintiff did not consent to any search and was conscious of his confinement by Defendants.

62. Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.

63. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; interfered with his right to security and privacy; and/or otherwise damaged and injured Plaintiff.

64. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF

**The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force, Regardless of Whether Such Force Is Used in Connection with a Search or Seizure
Against Defendant City and NYPD Defendants Pursuant to
New York City Administrative Code Title 8, Chapter 8 (§ 8-801, et seq.)**

65. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

66. As described above, the Defendants violated Plaintiff's right to be free from "unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure."

67. Pursuant to NYC Admin. Code Title 8, Chapter 8, §§ 8-801 through 8-809 of the New York City Civil Rights Law, Plaintiff maintains a private right of action against the individual NYPD Defendants and their employer, Defendant City, for this conduct.

68. The NYPD Defendants, including Defendants Simon, Demarche, and NYPD Does # 1-5, as employees of the Defendant City's police department, are "covered individuals" as defined in § 8-801 of this Chapter.

69. Pursuant to § 8-802, et seq., NYPD Defendants and their employer, including Defendant City, are liable to Plaintiff for the conduct described herein.

70. Pursuant to § 8-803, Plaintiff's claims under common law or pursuant to any other law or rule are not limited or abrogated by his invocation of this statute.

71. The remedies provided by this chapter are in addition to any other remedies that may be provided for under common law or pursuant to any other law or rule.

72. Pursuant to § 8-804, Defendants may not invoke the defense of qualified immunity to avoid liability for this cause of action.

73. Pursuant to § 8-806, Plaintiff is entitled to compensatory and punitive damages, attorney's fees and costs, and an order restraining the Defendants from engaging in further violative conduct.

THIRD CLAIM FOR RELIEF

Violations of Plaintiff's Due Process Rights Against All Defendants Pursuant to 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution

74. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

75. Defendants City, Defendant Adams, and Defendant Sewell designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing Plaintiff and subjected Plaintiff to the violations of his Due Process rights described elsewhere herein.

76. Defendants collectively and individually denied and/or frustrated Plaintiff's Due Process rights and deprived Plaintiff of liberty and property without due process of law.

77. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

78. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

Municipal Liability

Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiffs' Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

79. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

80. The Policymaker Defendants above were responsible for implementing and enforcing policies and procedures on behalf of the Defendant City of New York.

81. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to, permitting NYPD members who have a history of misconduct and/or providing false information to continue making arrests and providing information used to prosecute individuals such as Plaintiff.

82. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to:

- a. Formal policies, rules, and procedures of Defendant City;
- b. Actions and decisions by Defendant City's policymaking agents including, but not limited to, the Policymaker Defendants named above;
- c. Customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant Adams and Defendant Sewell, and other policymaking officials;

d. Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

83. Accordingly, Plaintiff is entitled to the damages requested in this Complaint.

FIFTH CLAIM FOR RELIEF

**Failure to Train and/or Supervise
Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)**

84. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

85. Defendant City, and its agents Defendants Adams and Sewell, failed to train and supervise the Defendant NYPD Members.

86. All individual Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Brewster's injuries.

87. Defendants knew or should have known that Defendant NYPD Members were likely to violate the constitutional rights of individuals in their custody.

88. Defendants know that NYPD Members are certain to regularly encounter situations such as those described herein—including the need to investigate allegations made by a complaining witness or witnesses—through the course of their employment.

89. Defendants knew that there is a history of wrongful conduct in these scenarios by NYPD Members.

90. Defendants also knew that individual NYPD Defendants have a documented history of adverse credibility findings and/or abusive conduct against individuals they encountered during their employment.

91. Defendants further knew that training and/or supervision could ameliorate the potential harms of constitutional violations in these scenarios, including civil rights violations, coerced confessions, and physical and emotional injuries. Nevertheless, Defendants failed to train its agents and/or employees regarding their conduct during the scenarios described herein and further failed to supervise its agents and/or employees when engaged in high-risk contact.

92. By failing to train and supervise Defendant NYPD Members, these Defendants exhibited a conscious disregard and/or deliberate indifference for the risks posed by NYPD members' conduct absent adequate training and supervision.

93. The harms suffered by Plaintiff are the direct result of Defendants' failures.

SIXTH CLAIM FOR RELIEF

Negligent Screening, Hiring, and Retention **Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and *Monell v. Department of Social Services*, 436 U.S. 658 (1978)**

94. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

95. All Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Brewster's injuries.

96. Defendant City and its agents Defendants Adams and Sewell knew that the individual Defendants had a propensity for the conduct giving rise to Mr. Brewster's injuries.

97. Defendants failed to adequately screen, hire, or retain employees in consideration of such employees' recognizable propensity for harm.

98. Such documented history of Defendants' willingness to lie and/or misrepresent facts while under oath and/or otherwise cause harm to individuals subjected to interactions with police renders Defendants' conduct both predictable to and preventable by policymaker Defendants.

99. Rather than removing or disciplining NYPD members who have provided non-credible testimony to courts, policymaker Defendants have continued to employ and empower such NYPD members to continue inflicting predictable harm on individuals they interact with, including Plaintiff.

100. Such conduct is so foreseeable as to rise to the level of deliberate indifference.

SEVENTH CLAIM FOR RELIEF

Breach of Duty to Protect and Failure to Intervene Against All Defendants Pursuant to 42 U.S.C. § 1983

101. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

102. The Defendant City, by its agents, had a special duty to Plaintiff and possessed sufficient knowledge that inaction would lead to the harms suffered by Plaintiff.

103. Defendants witnessed and/or knew of the harmful conduct of fellow Defendants and merely observed and/or unreasonably ignored such conduct against Plaintiff.

104. At no time did any Defendants intervene in the deficient conduct of their colleagues or otherwise fulfil their specialized duty to protect Mr. Brewster.

105. Defendant City and its employees and/or agents breached the existing duty to protect Plaintiff, and such inaction enabled and/or facilitated and/or exacerbated the harms caused by Defendants' conduct and suffered by Plaintiff.

EIGHTH CLAIM FOR RELIEF

Conspiracy***Against Defendants Campuzano and NYPD Does # 1-5 Pursuant to 42 U.S.C. § 1985(3)***

106. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

107. Through the conduct described and complained of herein, Defendants conspired to deprive Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws.

108. Defendants acted in furtherance of this conspiracy against Plaintiff, and as a result of this conduct, Plaintiff was injured in his person and property and deprived of his constitutional and civil rights.

NINTH CLAIM FOR RELIEF**Failure to Prevent Civil Rights Violations*****Against Defendants Campuzano and NYPD Does # 1-5 Pursuant to 42 U.S.C. § 1986***

109. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

110. Defendants, including individual NYPD Defendants, had knowledge that the wrongs conspired to be done against Plaintiff in violation of 42 U.S.C. § 1985 were to be committed and had the power to prevent and/or aid in preventing the commission of this conduct.

111. Defendants neglected and/or refused to prevent the commission of this conduct and Plaintiff sustained harm and/or the exacerbation of harm and the deprivation of his rights as a result of this failure.

112. Defendants are liable for all damages caused by the conspiratorial conduct they failed to prevent despite possessing the power to do so.

TENTH CLAIM FOR RELIEF**Malicious Prosecution**

Against All Defendants Pursuant to 42 U.S.C. 1983 and Plaintiff's Rights Under the Second, Fourth and Fourteenth Amendments to the United States Constitution

113. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

114. Defendants instituted or caused the claim against Plaintiff to be instituted without any probable cause. Defendants provided false information to further the criminal prosecution of Plaintiff.

115. Defendants' motive in instituting the suit was malicious, and the prosecution of Plaintiff was terminated in his favor when the Kings County District Attorney dismissed the charges against him, thus dismissing the charge against Plaintiff.

116. As a result of Defendants' acts and omissions, Defendants deprived Plaintiffs of his liberty and his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

117. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

ELEVENTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

118. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

119. As a result of the conduct described herein, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

I. *Respondeat Superior*

120. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

II. Violations of the New York State Constitution

121. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

122. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

III. Fabrication of Evidence

123. Defendants, including Defendants Simon, Demarche, and NYPD Defendants # 1 – 5, were investigating officials in this matter. Defendants knowingly fabricated evidence likely to influence a jury and forwarded this information to prosecutors.

124. As a result of this fabrication, Plaintiff suffered deprivations of his life, liberty, and/or property and suffered significant injuries.

125. These deprivations include: Plaintiff's detention in the NYPD's custody, including his time shackled while he remained in the hospital; Plaintiff's pretrial incarceration at Rikers Island in Defendant City's custody for approximately eight (8) months, where he was injured and otherwise violated; and Plaintiff's mandated return to Court on approximately two occasions after

his release but during the pendency of the criminal case against him until it was terminated in his favor.

IV. Deprivation of Right to Fair Trial

126. Through the conduct described above, Defendants deprived Plaintiff of his right to a fair trial.

V. Negligence

127. Defendants owed a special duty to Plaintiff and breached this duty through their conduct described herein. Defendants' negligence in fulfilling their duty to Plaintiff resulted in Plaintiff's injuries and they are liable for this conduct and its resulting injuries.

VI. Negligent Infliction of Emotional Distress

128. Defendants owed Plaintiff a duty of care and breached this duty of care through the conduct described herein, directly causing the emotional harms, including post-traumatic stress, insomnia, depression, and ongoing anxiety and fear

VII. Negligent Hiring, Training, and Supervision

129. Upon information and belief, Defendant City supervised and trained the police officials described above and did so in a negligent manner resulting in the harms described.

130. At all times relevant herein, Defendants were employed by, and acting in the scope of their employment with, Defendant City. Defendant City should have known that Defendant NYPD Members had a propensity for the conduct causing Plaintiff's injuries.

131. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

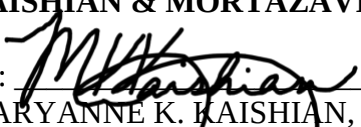
CONCLUSION AND DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
- iii. Policy change;
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, inter alia, 42 U.S.C. §1988, the New York City Admin. Code, Ch. 8, Title 8, and New York State common law; and
- v. Such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
March 7, 2024

KAISHIAN & MORTAZAVI LLC

By: 
MARYANNE K. KAISHIAN, ESQ.
55 Washington Street, Ste. 508
Brooklyn, New York 11201
T: (347) 662-2421
E: mk@kaishianlaw.com

ATTORNEY VERIFICATION

I, MARYANNE K. KAISHIAN, an attorney duly admitted to practice before the United States District Court for the Eastern District of New York, affirms the following to be true under the penalties of perjury:

1. I am the attorney of record for the Petitioner.
2. I have read the annexed Verified Petition and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.
3. I make this verification because Petitioner does not reside in the County (Kings) where I maintain my office.

Dated: Brooklyn, New York
March 7, 2024

By: 
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